



EMPLOYMENT TRIBUNALS

Claimant: Mrs E Trobe

Respondents: Nomad Health Technologies Ltd (1)
Mr A Lewis (2)
Mr S Cosgrove (3)

Heard at: London Central (by CVP)

On: 24 March 2025

Before: Employment Judge Emery

REPRESENTATION:

Claimant: Mr C Hogg (representative)

Respondent: Ms R Younis (representative)

PRELIMINARY HEARING IN PUBLIC JUDGMENT

1. The respondents' application to submit a defence out of time is refused.
2. The respondents may participate in the remedy hearing preparation to the extent set out below.

REASONS

1. Reasons were provided at the hearing and written reasons were requested.
2. The ET1 claim and particulars of claim was received by the Tribunal on 5 February 2024 (page 4). The claimant claims she was unfairly dismissed, that she made protected disclosures and health and safety disclosures and suffered detriments and was dismissed as a consequence; she alleges disability and sexual orientation

discrimination, and says she was victimised. The 2nd respondent is its CEO; the 3rd respondent is its CFO.

3. The claim form and accompanying papers were posted on 7 March 2024 to each of the respondents at the following address:

Ship Canal House, 98 King Street, Manchester, M2 4WU.

4. The respondents did not enter a defence to the claim, the tribunal wrote stating it was considering issuing a default judgment; a judge instead decided to list a remedy hearing for 24 March 2025. On 3 February 2025 Mr Lewis emailed the Tribunal saying he needed “all previously issued Tribunal paperwork as we have not received copy.” He said the only letter he had received was the notice of remedy hearing (26). As a consequence, on 13 February 2025 the remedy hearing was adjourned and relisted as an Open Preliminary Hearing to determine the respondents' application to file a defence out of time (27). Mr Lewis provided a witness statement for this hearing.
5. The respondents' application for extending time was submitted on 26 February 2024. It did not serve an ET3 or grounds of defence because “we have not received any ET1 to respond to.” The reason for the delay was said to be: the respondents did not receive the ET1 or notice of claim and had no knowledge of the claim; they found out about the claim on 21 January 2025 and immediately instructed Peninsula; the apparent reason for not receiving the claim was “a small discrepancy” in the registered address of the 1st respondent, which is:

5th Floor, Ship Canal House, 98 King Street, Manchester M2 4WU

6. The application states that the tribunal has been “corresponding with the respondent's incorrect address”, and this is the reason the respondents “have not received any papers whatsoever...”.
7. The application states that the respondents have an arguable defence and it is in the interests of justice to hear it; otherwise the claimant will receive a “windfall”, it is in line with the overriding objective to allow the parties to be on an equal footing, an extension will be in accordance with the tribunal's unnecessary formality and flexibility.
8. The ET3 was submitted on 19 March 2025. The respondents reserve their position on disability. It denies all other allegations, stating the claimant was never Commercial Director, that her role was made redundant because of the need to restructure the business for profitability grounds. They say the claimant was one of several redundancies during this period.

9. The respondents appear to accept the claimant made one protected disclosure (paragraph 26 defence, 48). It denies she made other protected disclosures, saying that her email of 8 September 2023 was sent in the course of her duties; other issues raised amount to an “expression of opinion”, other issues were resolved shortly after they were raised or were, for example, building maintenance issues which were not the respondents’ responsibility; the clinic water pump issue cannot be a PID, and the claimant could not reasonably have thought so.
10. The respondents assert that the registered office is effectively a post-box. It subcontracts its postal collection to a company called ‘Azets’. On 3 February 2025 Mr Lewis emailed an Azets employee asking if there is any record of letters from the Tribunal – the response was that “they have sent everything on that they have received” and their “spreadsheet” of incoming mail does not show anything else being received from the employment tribunal (53).
11. The claimant says that the respondents “have not been full and frank” in their explanations for the delay.

Submissions

12. In submissions Ms Younis for the respondents argues that these are “lengthy and complex claims” that the respondents should be given an opportunity to respond to.
13. The respondents refer to *Kwik Save Stores v Swain* and *Grant v Asda*: That the tribunal must in the exercise of its discretion take into account all factors, including the respondents’ explanation for the delay, the merits of their defence, the balance of prejudice “and reach a conclusion which is objectively justified”.
14. The respondents accept that they must “provide a satisfactory explanation” for the delay; they argue there is a valid and honest explanation, the respondents did not receive the papers and so could not respond. The 1st respondents registered office did not receive the paperwork and there is evidence of this. The lack of the 5th floor in the address “may explain” the reason. “So, it is not an intentional or procedurally abusive delay”. They then take steps “swiftly and without delay” to instruct Peninsula; they only received the ET1 on 12 March 2025. It was not possible to send a response earlier than 19 March 2025.
15. On merits, the respondents argue that “if there is some merit” in the defence, “justice will go to granting an extension of time”. This is a lengthy and complex claim which requires careful evaluation. It is in the interests of justice to have a contested hearing. The disclosures are disputed, much of the claim requires clarity. The claimant took part in a two-month redundancy consultation and there is a clear fair reason for dismissal. It is unclear whether the claimant is disabled,

or that the respondents had knowledge of disability. All the respondents have received from the claimant is a therapist's letter and a disability impact statement. These are all issues on which the ET would require evidence; the respondents "have at least an arguable case" and it is not in interests of justice to limit their participation.

16. Ms Younis accepts that there is a detriment to the claimant – a delay – if the claim is defended; but the claimant has expended limited costs, the claimant can pursue her claim and have a fair hearing. There is significantly greater prejudice to the respondents who could be liable to pay a "windfall" if they are not allowed to defend the claim "lost time can be made up" by tight deadlines.
17. Mr Hogg for the claimant argues that it is for the respondents "to give a full and frank account and they have not done so".
18. On the registered office: the claimant's position is that companies House website will show that the 1st respondent's registered office was, from 2018 to 5 December 2024:
Ship Canal House, 98 King Street, Manchester, M2 4WU.
19. It is only on 5 December 2024 that "5th Floor" was added to its registered address. The Tribunal has therefore served the claim and papers on the correct registered address. "It is false" to say that the tribunal was using an incorrect address in its correspondence to the respondents in 2024, "and the respondents must know this".
20. As well as the claim forms and notice of preliminary hearing having been posted to the correct address, there have been 'copious emails' sent by Mr Hogg to the Tribunal which were copied in an email used by the respondent – hr@nomadtravel.co.uk. The tribunal has sent papers to this email address, including a hearing notice.
21. One example is in the bundle, sent to the HR address and cc'd to Mr Lewis (andrewlewis@nomadtravel.co.uk) and Mr Lewis has not commented on the use of the HR email address. The emails sent by Mr Hogg to the HR address never bounced back as not received.
22. "So Mr Lewis has not been full and frank" about receipt of papers from the tribunal by post or email, or about his knowledge of the claim.
23. The respondents were provided with the amended particulars of claim on 27 February 2025 but have only addressed the original claim in its defence; they have not addressed the issue of disability and evidence and have not responded to the

more detailed information in the amended particulars. If the respondents are keen to move matters on, they have not done so, instead they have “ignored all the progress on the case” in the past year.

24. In addition, a number of the defences to the PID issue “do not bear scrutiny”, the respondents cannot deny the claimant made at least some public interest disclosures. While some aspects of the defence may be arguable “taken in the round as part of the interests of justice” it is important to note that some aspects of the defence do not have arguable merits.
25. On redundancy, the claimant was in advanced discussions about a new role, she then made disclosures, she was then selected for redundancy, this is evidence that her redundancy was a sham.
26. On knowledge of disability: In fact, the respondents did know, because the claimant became disabled during her employment and she consistently raised this with the respondents.
27. On prejudice, the claim was lodged well over a year ago. The claim has been progressed, and the claimant has undertaken a number of steps at the Tribunal’s request and was told a default judgment would be issued, followed by a remedy hearing which was meant to take place today. To have to go through the same steps to prove her claim would cause “extreme damage” to her mental health.
28. Mr Hogg accepts there is prejudice to the respondent if they cannot defend the claim at liability, but the respondents’ actions “have not been those of a party taking matters seriously”; it has not been full and frank, and even now it has not sought to engage in issues in the case. It is seeking to put the case back, while professing to move forward.

Issues raised by the tribunal and further discussion

29. During a break in the hearing, I looked at the Tribunal’s electronic case management system (ECM). I noted that on 9 April 2024 the tribunal requested the claimant’s rep to provide an email address for the respondents, and the HR@nomadtravel.co.uk address was provided the next day. On 10 April 2024 the tribunal wrote to this address with paperwork including the claim form. Further correspondence was sent to this address, including the claimant’s amended particulars (on 24 June 2024), and the claimant’s further information.
30. The ECM records that as well as the Ship Canal House address, the tribunal sent the claim and ET3 and associated papers on 7 March 2024 addressed to the 2nd and 3rd respondents at the following address:

20-22 Wenlock Road London N1 7GU

31. I note that the 1st respondent's parent company is Ttt Technologies Ltd, that the 2nd and 3rd respondents are directors of this company, and Mr Lewis's correspondence address for Ttt Technologies Ltd is 22 Wenlock Road.
32. Notice of the case management hearing was sent to all respondents at the Ship Canal House and Wenlock Road addresses.
33. I raised the above issues with the parties. We also discussed the fact that emails were sent by two different officers at the Tribunal to the HR address, with no indication that they bounced back.
34. On taking instructions the respondents argue that the HR email address has not been in use since 2023 "no one controls this address" and the 2nd and 3rd respondents "have no responsibility for this address". Staff involved in taking it down have left the company so the respondents "can't comment on whether it's live or not". The address is not monitored. 22 Wenlock Road is the registered office of the 1st respondent's parent company, and of not the respondents. Mr Lewis has no knowledge of these letters.
35. The claimant argues that this is evidence that the respondents do not approach this application "with no fault". If they choose not to monitor a valid company email address without an automatic response saying so, this is the "respondents' choice". The papers were validly served by email and by post, and the company must be responsible for information it has been validly sent.
36. It is also apparent, says Mr Hogg, that the respondents have not been full and frank in making their application, the company address issue has been positively put in the statement of Mr Lewis, with no mention that the address was changed in December 2024. He argues that this is not an oversight, "... it is at best disingenuous and should count against him and the 1st respondent." The issue of Wenlock Road shows a "lack of care" dealing with formal correspondence sent to a registered office "which should be monitored and reviewed". The respondents have not provided reasons why this did not happen.

The law

37. Employment Tribunal Rules 2024

Rule 21 - Applications for extension of time for presenting response

- (1) A respondent may make a written application to the Tribunal for an extension of time for presenting a response.
- (2) The application must
 - a. set out the reasons why the extension is sought,
 - b. except where the time limit has not yet expired, be accompanied by a draft response, or an explanation as to why that is not possible, and
 - c. specify if the respondent wishes to request a hearing.
- (3) A claimant may within 7 days of receipt of a copy of the application give reasons in writing to the Tribunal explaining why the application is opposed.
- (4) The Tribunal may determine the application without a hearing.
- (5) If the Tribunal refuses to grant an extension of time, any prior rejection of the response must stand. If the Tribunal grants an extension of time, any judgment issued under [rule 22\(2\)](#) (effect of non-presentation or rejection of response, or case not contested) must be set aside and [rule 22\(3\)](#) ceases to have effect.

Rule 22 - Effect of non-presentation or rejection of response, or case not contested

- (1) This rule applies where—
 - a. the Tribunal has not received a response by the time specified in [rule 17\(1\)](#) (response), or by an extension of time granted under [rule 21](#) (applications for extension of time for presenting response), or
 - b. any response received has been rejected and no application for a reconsideration is yet to be determined, or
 - c. the respondent has stated that no part of the claim is contested.
- (2) The Tribunal must decide whether on the available material (which may include any further information which the parties are required by the Tribunal to provide), a determination can properly be made of the claim, or part of it. To the extent that a determination can be made, the Tribunal must issue a judgment accordingly, otherwise, a hearing must be fixed. Where the Tribunal has directed that a preliminary issue should be determined at a hearing, a judgment may be issued by the Tribunal under this rule after that issue has been determined without a further hearing.

- (3) The Tribunal must provide the respondent with notice of any hearing or decision of the Tribunal but the respondent may only participate in any hearing on that claim to the extent permitted by the Tribunal.

38. Case law

- a. *Kwik Save Stores Ltd v Swain* [1997] ICR 49: The Rules require that all relevant documents and other factual material must be put before the tribunal to explain both the non-compliance and the basis on which it is sought to defend the case on its merits, and the employment judge in exercising his discretion must take account of all relevant factors, including the explanation or lack of explanation for the delay and the merits of the defence, and must reach a conclusion which is objectively justified on the grounds of reason and justice, taking into account the possible prejudice to each party.

- b. *Grant v Asda* [2017] ICR D17 EAT:

"... tribunals must take account of all relevant factors, including the explanation or lack of explanation for the delay in presenting a response to the claim, the merits of the respondent's defence, the balance of prejudice each party would suffer should an extension be granted or refused, and must then reach a conclusion that is objectively justified on the grounds of reason and justice and, we add, that is consistent with the overriding objective set out in Rule 2 of the ET Rules." (*paragraph 18*).

- c. *Horney Golf Centre Ltd v Reed* [2024] EAT 96 (20 June 2024, unreported):

"(1) The late submission of a response, and an application to extend time for it, will inevitably cause some delay, because of the need for that application to be adjudicated on paper or at a hearing. But when deciding whether to extend time for a late response, the starting point, in relation to delay, should be a consideration of the extent of the delay in putting in the response itself and/or (if done later) in applying for an extension. The more serious the delay which has necessitated the application, the more important it is for the respondent to provide a full and satisfactory explanation for it.

(2) If the late response was not accompanied (or preceded) by a request for an extension of time, the tribunal should also consider the delay in making the application, and why that was not done sooner, including, where the failure to accompany the response with an application for extension has been raised by the administration, how promptly

thereafter the request, and associated explanation for the original delay, were put forward.

(3) Once the late response, and application for extension, with an explanation for the original delay, have been provided, and the claimant has had the seven days allowed by rule to register any opposition to the application, the next step should be for a judge to decide that application on paper or, if the judge directs, at a hearing.

(4) In many cases, where this proceeds smoothly, the further time delay inevitably involved in reaching that point, and what has occurred between the time of the application and the time of the decision on it, will not be significant to that decision. But it will not necessarily be irrelevant in every case. There could, for example, be a case where it is said that additional delay has been caused by the unreasonable conduct of a party, or that there has been some specific further development which should have a bearing on the balance of prejudice.

(5) Decisions under Rules [20-22] are to be taken by an EJ alone."

- d. *Office Equipment Systems Ltd v Hughes* [2018] EWCA Civ 1842: A respondent who has been debarred from defending a claim on liability might be permitted to participate in the determination of remedy. There is "no absolute rule" that such a respondent is always entitled to participate in the determination of remedy. A distinction may be drawn between two types of case. In the second type of case, a greater involvement would be appropriate. In a complex case it would be "an exceptional case" which would justify excluding the respondent from participating in a remedy hearing or from providing written representations.

Conclusions on the facts and the law

Explanation for the delay

- 39. The tribunal is asked to accept Mr Lewis's statement that a likely reason why the notification of the claim was not received was because the wrong company address was used.
- 40. But this is an incorrect statement, as the tribunal and the claimant did have the right company address and the documents sent by the tribunal were correctly addressed.

41. The claim and notice of hearings were also sent to the 2nd and 3rd respondents at the registered office of the 1st respondent's parent company, they are both directors of that company.
42. It is not just the claim form which was sent to the correct Ship Canal House office. several other letters were sent by the tribunal, including a notice of a preliminary hearing.
43. In addition, the papers were sent by at least two tribunal officers to an email address which was being used by the 1st respondent during the ACAS conciliation process. It was in use; the emails of Mr Hogg and the tribunal officers were not bounced back. There was no automatic response saying this email was not being monitored, and the respondents do not say there was one. I can only conclude that this email was still live and senders to it would assume it was still live. If it was never monitored this was at least very negligent behaviour by the respondents.
44. Mr Lewis's statement, to which he signed a statement of truth, is misleading in its description of the company's registered office address. Given his position in the company, he must have known that this address was changed in December 2024 to add 5th Floor. He must therefore be aware his assertion the tribunal used the 'wrong' address is incorrect. He is breach of his obligations to this tribunal when providing evidence with a statement of truth, as he has provided obviously incorrect and misleading evidence.
45. I therefore have very significant issues with the respondents' evidence. I do not accept that there was a multiplicity of mere errors – which the respondents wrongly say were the claimants/tribunals errors – to explain both why it has not submitted a defence and why it should be allowed to do so over a year out of time.
46. I therefore reject the respondents' evidence that the 1st respondent had no sight of the claim. While it may be that the claim was not personally handed to the 2nd and 3rd respondents, it was served to two valid postal addresses and one company email address, on at least 3 different occasions. It was, I find, validly served on the respondents in February and April 2024.
47. What happened to the claim after it had been served, whether on the companies registered offices or by email, I do not know. But given it was received and referred to on multiple occasions in other documents sent by post and email by the tribunal and Mr Hogg, I conclude that there has been no reasonable explanation given by the respondents why the claim was not responded to at a much earlier date.

Merits of the defence

48. I accept that the respondents may have some arguments in its defence in respect of some of the allegations of whistleblowing. But it also appears that the respondent accepts the claimant did whistleblow.
49. Having heard argument and considering the papers, I do not accept that it is a valid defence to say that some of her disclosures were only the claimant doing her role; or that the issues she raised were resolved shortly afterwards; or that the health and safety issues were not the respondents' responsibility; or that concerns she raised about a Doctor and patient safety concerns were an expression of "opinion" only. These and other headline defences of the respondent to the protected disclosure allegations do not in all cases ring true. It therefore appears, on the documents and from submissions, that the claimant may well succeed in a contested hearing that she made qualifying protected disclosures to her employer.
50. I also accept that the respondent may find it difficult to prove its primary defence to the Employment Rights Act claims, that her disclosures were of no consequence to the decision to make her redundant.
51. The respondent does not anywhere address the claimant's detailed account of her discussions about her new role; she says she never received any notification or hint of redundancy until after her disclosures – this important assertion is nowhere addressed. For example, the defence provides a generic explanation of the need to restructure following a merger of two businesses; however, it provides no dates of when decisions were taken, particularly those affecting the claimant. This is important to assess the merits of the respondent's position that her protected disclosures played no part in its decision to make her redundant.
52. To put it another way, I do not know even at this hearing what the merits of the respondents' defence may be on whether the claimant's whistleblowing acts were known when the proposal to dismiss her was made, what process it followed. This necessarily goes to my assessment of whether the respondent has any reasonable grounds to prove the reason for dismissal is redundancy.
53. I therefore accept that aspects of the defence may have merits, but that there are issues where the defence is unlikely to succeed: in particular that the respondents will find it difficult to successfully argue that the claimant did not make qualifying protected disclosures; it may also find it difficult to explain why it made the claimant redundant shortly after her disclosures when it was in advanced discussions to promote her and she was undertaking that role.

Prejudice

54. I accept that if the respondent's application succeeds, the claimant will suffer significant prejudice as she will have her claim, which she believed would be resolved today, put back by well over a year after having complied with all tribunal's directions. I also accept that if the application fails there will be significant prejudice to the respondents, who may be liable for many or all of the allegations without being able to defend the claim.
55. But I also conclude that there has been over one year's delay in submitting a defence to the claim, which can only be the fault of the respondents. Was this delay deliberate? Or was it the result of serious administrative default? I find that these are the only two possible explanations for this failure.
56. If it was serious administrative default, this means that there were significant failures at two registered companies house addresses, both of which were served important tribunal papers on several occasions; it means that there was a negligent failure to monitor at all a live "HR" email address previously in use in the pre-claim conciliation process; it means that Mr Lewis negligently provided a misleading sworn witness statement asserting the registered office address provided by the claimant and used by the tribunal was wrong.
57. It is also the case that the defence fails to engage in many issues in the claim; this means that at the date of this hearing there has been no progress in the claim for a year. This will inevitably lead to yet further delay in the tribunal process (an amended defence, a possible further information request, etc.).
58. There is also an out-of-time application and statement in support which, to reiterate, contain significant material inaccuracies. This is coupled with the respondents and their registered offices' obvious and clearly negligent failures.
59. The respondent did not present witness evidence from Azets or documentation showing its postal process, how correspondence is logged, the relevant logs for the periods in question. Without such evidence I cannot accept the contention that the 1st respondent's registered office did not receive several sets of documents from the tribunal, addressed to all respondents.
60. Whether intentional delay or serious administrative fault, the fact remains that the delay has been unreasonable and inexcusable, and the attempts to explain it unbelievable.
61. I also take into account that if liability were to be contested, there is a clear and obvious prejudice to the claimant from an inevitable and significant delay, well into the latter half of 2026 on current listings, for her claim to conclude.

62. I consider on balance that the fact of and reason for the delay - is “significant” to the decision on prejudice. There is clear prejudice to the claimant caused by the respondents acts and failures. I do not therefore consider that the prejudice to the respondent can outweigh its own responsibility for the delay.
63. I therefore conclude that this prejudice to the claimant, on these facts, outweighs the prejudice to the respondents; this is a factor I may take into account in my decision.

Conclusion

64. Considering what I consider to be the relevant factors:
- a. I do not accept the respondents' explanation for the delay to be credible; in any event the respondents acts and/or omissions in failing to submit a defence earlier amounts to wholly unreasonable behaviour
 - b. While the defence may have (yet to be articulated) merit, equally there are aspects of the claim, particular the ERA 1996 claims, which have real merit.
 - c. The length of the delay: the claim was sent to the respondents on 7 March 2024, for them to respond by 3 April 2024. Their ET3 was submitted on 19 March 2025, nearly a year later. This is a very lengthy delay, and the respondent has not, as is “important ... provided a full and satisfactory explanation for it”.
 - d. Additional delay has been and will be caused by the unreasonable failure of the respondents to provide a satisfactorily detailed response to the claim even at the date of this hearing.
65. Taking into account the overriding objective, and the need to reach a decision which is objectively justified on the grounds of reason and justice, I consider that the above factors means that the only reasonable and just step to take is to refuse the respondents’ application under Rule 21 for an extension of time to submit its defence.

Amendment to the Judgment

66. The attached Rule 22 Judgment records that I have determined that some claims can proceed to a remedy hearing. This is at odds with what I informed the parties at the Preliminary Hearing. Following the discussion on the merits of the claims and defence I told the parties that a judgment would be issued in respect of all claims.

- 67. Following the hearing I further assessed the claims. I have decided to amend the judgment. I cannot conclude from the papers and discussion that the claims of direct discrimination and disability-related claims are made out, as required by Rule 22. These, I conclude, need further evidence. The judgment reflects that all other claims succeed and can proceed to a remedy hearing.
- 68. The parties are asked to consider the Case Management Order dated 13 May 2025 setting out the implications of this decision.

Approved by:
Employment Judge Emery
13 May 2025

Judgment sent to the parties on:

16 May 2025
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For the Tribunal:
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